

SECOND REGULAR SESSION

HOUSE BILL NO. 2210

103RD GENERAL ASSEMBLY

INTRODUCED BY REPRESENTATIVE RIGGS.

4008H.011

JOSEPH ENGLER, Chief Clerk

AN ACT

To amend chapter 168, RSMo, by adding thereto one new section relating to matching grants for teacher salary increases.

Be it enacted by the General Assembly of the state of Missouri, as follows:

Section A. Chapter 168, RSMo, is amended by adding thereto one new section, to be known as section 168.461, to read as follows:

168.461. 1. This section shall be known and may be cited as the "Matching Grants for Teachers Plan".

2. (1) There is hereby created in the state treasury the "Matching Grants for Teachers Plan Fund", which shall consist of moneys appropriated under this section. The state treasurer shall be custodian of the fund. In accordance with sections 30.170 and 30.180, the state treasurer may approve disbursements. The fund shall be a dedicated fund and, upon appropriation, moneys in this fund shall be used solely as provided in this section.

(2) Notwithstanding the provisions of section 33.080 to the contrary, any moneys remaining in the fund at the end of the biennium shall not revert to the credit of the general revenue fund.

(3) The state treasurer shall invest moneys in the fund in the same manner as other funds are invested. Any interest and moneys earned on such investments shall be credited to the fund.

3. The general assembly may make an annual appropriation to the matching grants for teachers plan fund established in this section to match amounts school districts use from each district's reserves to increase teacher salaries. No amount

EXPLANATION — Matter enclosed in bold-faced brackets [thus] in the above bill is not enacted and is intended to be omitted from the law. Matter in **bold-face** type in the above bill is proposed language.

18 appropriated under this section shall exceed the total amount necessary to provide each
19 school district with up to one million dollars for matching grants under this section.

20 4. Any school district that uses such district's reserves to increase teacher
21 salaries may apply to the department of elementary and secondary education for a
22 matching grant of moneys from the matching grants for teachers plan fund to assist
23 such district in increasing teacher salaries. An amount granted to a school district from
24 the matching grants for teachers plan fund shall be equal to the total amount such
25 district withdraws from such district's reserves and uses solely to increase teacher
26 salaries.

27 5. No school district shall receive a total of more than one million dollars
28 annually under this section.

29 6. No school district shall be eligible to receive any moneys under this section
30 unless the school district deposits into such district's reserves a minimum of one
31 hundred thousand dollars.

32 7. No school district shall exhaust all of such district's reserves to increase
33 teacher salaries for the purpose of receiving matching grants under this section. No
34 school district shall deplete such district's reserves below the amount required to be
35 maintained by state law or regulations.

36 8. No school district shall receive any moneys under this section unless such
37 school district uses all interest earned from balances in the teachers' fund, incidental
38 fund, capital projects fund, and debt service fund created under section 165.011 to
39 supplement, not supplant, moneys used for teacher salaries, to the extent that such
40 interest is not otherwise obligated by other provisions of state law.

41 9. The department may promulgate all necessary rules and regulations for the
42 administration of this section. Any rule or portion of a rule, as that term is defined in
43 section 536.010, that is created under the authority delegated in this section shall
44 become effective only if it complies with and is subject to all of the provisions of chapter
45 536 and, if applicable, section 536.028. This section and chapter 536 are nonseverable
46 and if any of the powers vested with the general assembly pursuant to chapter 536 to
47 review, to delay the effective date, or to disapprove and annul a rule are subsequently
48 held unconstitutional, then the grant of rulemaking authority and any rule proposed or
49 adopted after the effective date of this section shall be invalid and void.

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